

Munna Prasad Soni v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 May 2023 · Writ-C No. 14941 of 2023 · **Final assessment and recovery quashed for want of fifteen days' notice.**

HEADNOTE

A final assessment was quashed, with the consequential recovery, because the provisional-assessment notice dated 24 July 2021 for a hearing on 2 August 2021 was conceded not to be a clear fifteen days under Clause 6.8 of the U.P. Electricity Supply Code, 2005. The writ was disposed of on the terms of Writ-C No. 14162 of 2023, decided the same day: liberty to proceed afresh in accordance with law, and communication of the order to the DISCOM Managing Director.

FACTUAL SUMMARY

Munna Prasad Soni and another challenged a final electricity assessment before the Allahabad High Court. The assessment order recorded a provisional-assessment notice dated 24 July 2021 calling on them to object and to appear on 2 August 2021. That span was conceded not to be a clear fifteen days under Clause 6.8 of the U.P. Electricity Supply Code, 2005. The licensee's counsel stated that the writ was covered by the Court's order the same day in Writ-C No. 14162 of 2023.

REUSABLE CONSTRUCTIONS

1. Clause 6.8 of the U.P. Electricity Supply Code, 2005 requires a clear fifteen days' notice of the provisional assessment; a notice dated 24 July calling for appearance on 2 August does not give it. ¶ 1
2. Want of that clear fifteen days' notice leads to quashing of the final assessment and of the action taken to realize the sum, the licensee being left to proceed afresh in accordance with law. ¶ 2-3

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Clear fifteen days' notice before final assessment

HOLDING

Where the final assessment records a provisional-assessment notice dated 24.07.2021 requiring objection and appearance on 02.08.2021, and it is conceded that there was no clear notice of fifteen days under Clause 6.8, the final assessment and the consequential action for realization of the sum are quashed, with liberty to the licensee to proceed afresh in accordance with law. ¶ 1-3

PRINCIPLE TAGS

6.8-procedure-mandatory The Court treated Clause 6.8's clear notice of fifteen days as obligatory: the notice of 24.07.2021 for a hearing on 02.08.2021 was conceded to fall short, and that shortfall controlled the result. Lead authorities: *Writ-C No. 14162 of 2023*. ¶ 1-2

assessment-quashed-for-breach-of-clause-6.8-procedure Following the companion order of the same day, the Court quashed the final assessment because the provisional-assessment notice did not give a clear fifteen days under Clause 6.8. Lead authorities: *Writ-C No. 14162 of 2023*. ¶ 1-3

para-6.8-non-compliance-vitiates-assessment-and-recovery The operative direction, applied to this petition, quashed both the final assessment and the consequential action taken to realize the sum, while leaving a fresh proceeding in accordance with law open. Lead authorities: *Writ-C No. 14162 of 2023*. ¶ 2-3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Writ-C No. 14162 of 2023</i> Writ-C No. 14162 of 2023 High Court of Judicature at Allahabad	Final assessment and consequential recovery are quashed where Clause 6.8 procedure is not followed, with liberty to proceed afresh in accordance with law and a direction to communicate the order to the DISCOM Managing Director.		2	followed

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A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.